

IN THE SUPREME COURT OF PAKISTAN
(Original Jurisdiction)

Present:
Justice Qazi Faez Isa, CJ
Justice Muhammad Ali Mazhar
Justice Musarrat Hilali

Constitution Petition No. 5/2024
*(Systematic De-Forestation Taking
Place at the Fatima Jinnah Park, F-9,
Islamabad)*

Public at Large	Petitioner
Versus	
Capital Development Authority and another	Respondent
For the Petitioner:	Mr. Saad Mumtaz Hashmi, ASC Syed Hassan Ali Raza, ASC
Commissioners:	Mr. Aqeel Afzal Mr. Imran Waseem
For the Federation:	Malik Javed Iqbal Wains, Addl. AGP
<u>On Court's Notice:</u>	
For CDA:	Mr. Yasir Arfat Ahmed, ASC Mr. Irfan Azeem Khan, Deputy Director General (Environment) Mr. Waqar Zakria, Member Wildlife Mr. M. Asif Majeed, Forester, MHNP Dr. Raza Bhatti, Botanist
For EPA:	Ms. Farzana Altaf Shah, Director General Mr. M. Ramzan, A.D (Legal)
Date of Hearing:	04.03.2024

ORDER

1. Pursuant to order dated 27 February 2024, which was in respect of the tree-cutting/deforestation taking place in the Fatima Jinnah Park, situated in the F-9 Sector of Islamabad (**‘the Park’**) the Commissioners appointed by the Court have submitted their joint report (CMA No. 1607/2024) and video recordings. In case the Capital Development Authority (**‘CDA’**) has any objection to the report the same be filed before the next date of hearing.

2. CDA has filed CMA No. 1603/2024 in response to the questions in the said order and informs that it did massive plantation in the 1970s of paper mulberry trees (*Broussonetia papyrifera*), but later discovered that it causes pollen allergy, therefore, it was decided to remove all such trees from Islamabad, including from the Park which has their largest concentration.

3. 'Open Auction Notice' was published by the Director Environment, CDA inviting bids from contractors to undertake the removal of paper mulberry trees and other invasive species. Mr. Shah Nazar was selected as the contractor as he had offered the highest amount for the timber to be removed, that is, five million and two hundred thousand rupees, at the rate of 66.94 per cubic foot. As per CDA approximately 7,000 paper mulberry trees were removed *from different patches and packets of 55 acres* of the Park.

4. However, photographs and recording shows that the area has been denuded of all trees and vegetation. We enquired whether paper mulberry trees were marked and it transpires that the work was undertaken by the contractor himself. It would be in the interest of the contractor to remove other trees too whose timber value is greater. CDA employs about 4,500 gardeners but they could not have undertaken the said work because, we are told, CDA does not have the requisite saws and other paraphernalia to cut/remove and uproot the trees. We also enquired why was not a contract not given only for the removal of paper mulberry trees and once they were cut down/removed to have sold them but did not receive a satisfactory answer. CDA handed over the entire work to the contractor, who appears to have worked unsupervised. All trees and vegetation seems to have been cut, despite the fact that they take years to grow and play a useful role.

5. We are greatly concerned with the manner in which the land has been cleared of all vegetation, not just paper mulberry trees. It would be appropriate to seek the assistance of Mr. Mahmood Nasir and Syed Ghulam Qadir Shah, both of whom are retired Inspector Generals of Forests, to assist this Court with regard to whether the manner in which CDA had the trees and vegetation removed from the Park was in accordance with good practice principles and how best to proceed in the future. Office is directed to send copy of this

order and order dated 27 February 2024 to them together with copies of CMA Nos. 1603 and 1607 of 2024. Till the next date of hearing no further trees shall be cut nor to undertake further deforestation.

Chief Justice

Judge

Judge

Islamabad
04.03.2024
(M. Tauseef)